

BEFORE THE IOWA
BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF	)	COMPLAINT NO. 87-5
THE LICENSE TO PRACTICE	)	
SOCIAL WORK OF:	)	
Harvey Dean Visscher,	)	
Lic. No. 00014,	)	INFORMAL SETTLEMENT
Respondent.	)	

COMES NOW the Iowa Board of Social Work Examiners (the Board) and Harvey Dean Visscher, L.S.W., (Respondent) and, pursuant to Iowa Code §§ 17A.10 and 258A.3(4), enter into the following Informal Settlement of the contested case currently on file:

1. The Respondent was originally licensed to practice social work in the state of Iowa on August 26, 1985, and currently holds license number 00014.
2. The Respondent's license is current until December 31, 1992.
3. Respondent's current address as reported to the Board is 3208 Viking Drive, Sioux City, Iowa 51104.
4. A Statement of Charges was filed against the Respondent on April 2, 1991, alleging that the Respondent violated various provisions of the Board's rules and statutes.
5. The Board has jurisdiction of the parties and the subject matter.
6. Respondent admits the allegation as set forth in paragraph 4 of the statement of charges. In regard to the allegation in paragraph 5, Respondent admits that he became improperly physically and emotionally involved, and that a

relationship developed in violation of his ethical responsibilities.

7. Respondent agrees to immediately surrender his license to practice social work in this state, and hereby tenders his original license and current renewal (attached).

8. Respondent agrees that he will not seek reinstatement of his license for a minimum of two years from the date of the approval of this agreement.

9. Respondent shall obtain at his own expense at least three (3) college semester credits of graduate level study specifically in the area of social work ethics. In the alternative, Respondent may, at his own expense, contract for a minimum of 1 year of supervision with a licensed social work supervisor who shall focus on ethical considerations, and shall file quarterly progress reports with the Board. The contract and the supervisor shall be subject to prior approval by the Board.

10. Respondent shall, at his own expense, obtain evaluation and treatment by a licensed professional with expertise in the area of the treatment of the impaired professions. The professional's license shall be in good standing with the relevant profession's licensing board, and Respondent's choice of professional is subject to prior approval by the Board. At the end of treatment, the professional shall provide a final report regarding Respondent's evaluation and treatment to the Board, including an assessment of Respondent's prognosis regarding his ability to practice social work ethically and safely. Respondent

agrees to execute all necessary releases to effectuate the transfer of this information to the Board.

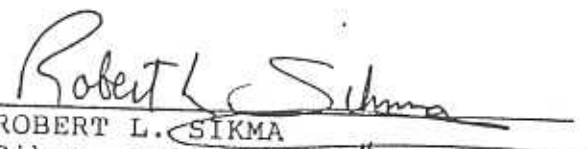
11. This Informal Settlement will be reported to the DARS (Disciplinary Action Reporting System) of the AASSWB (American Association of State Social Work Boards).

12. This Informal Settlement is subject to approval of the Board. If the Board approves this Informal Settlement, it becomes the final decision of the Board in this matter. If the Board fails to approve this Informal Settlement, it shall be of no force or effect to either party.

13. This Informal Settlement is voluntarily submitted the 15th day of May, 1991.


HARVEY DEAN VISSCHER
Sioux City, Iowa

RESPONDENT


ROBERT L. SIKMA
Sikma, Kollars, and Gurdin
Attorneys-at-Law
402 Benson Building
Sioux City, Iowa 51101

ATTORNEY FOR RESPONDENT


LYNETTE A.F. DONNER
Assistant Attorney General
Department of Justice
Hoover Building, 2nd Floor
Des Moines, Iowa 50319

ATTORNEY FOR THE PUBLIC
INTEREST

14. This Informal Settlement is accepted by the Iowa Board of Social Work Examiners on the 11 day of June, 1991.

Judith K. Rinehart June 11,
JUDITH K. RINEHART
Chairperson
Iowa Board of Social Work Examiners
1991

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COMPLAINT NO. 87-5
NOTICE OF HEARING AND
STATEMENT OF CHARGES

Respondent.

Pursuant to Iowa Code § 17A.12 and 645 Iowa Admin. Code 280.205, and upon a probable cause determination by the Iowa Board of Social Work Examiners (the Board), you are hereby notified that a Statement of Charges has been filed and is incorporated with this Notice. A disciplinary hearing regarding those charges has been scheduled at 9:30 a.m., May 14, 1991, in the Third Floor Conference Room North, Grimes State Office Building, Des Moines, Iowa. At that time you may appear and defend. If you fail to appear and defend, Iowa Code § 17A.12(3) provides that the hearing may proceed and a decision rendered. You have the right to be represented by legal counsel at your own expense, present evidence on your behalf, and to examine and cross-examine witnesses. The authority for the hearing is Iowa Code §§ 258A.3 and 258A.6 and Board rules 645 Iowa Admin. Code 280.200 and 280.210.

1. Respondent was originally licensed to practice social work in the state of Iowa on August 26, 1985, and holds license number 00014.

2. Respondent's license is current until December 31, 1992.
3. Respondent's current address as reported to the Board is 3208 Viking Drive, Sioux City, Iowa 51104.
4. During the calendar years 1985 and 1986, Respondent is alleged to have solicited social work clients to sell Amway products for his personal benefit, thus engaging in unethical conduct in violation of Iowa Code §§ 147.55(3) and 258A.10(3) and 645 Iowa Admin. Code 280.211(1)"c", and violation of the Board's rules of ethics, specifically, 645 Iowa Admin. Code 280.212(1) and (4), and 645 Iowa Admin. Code 280.213(1)"b" and "d".
5. Respondent is further alleged to have engaged in a sexual relationship with a client, J.C., thus engaging in unethical conduct in violation of Iowa Code §§ 147.55(3) and 258A.10(3) and 645 Iowa Admin. Code 280.211(1)"c", and violation of the Board's rules of ethics, specifically, 645 Iowa Admin. Code 280.212(1) and 645 Iowa Admin. Code 280.213(1)"e".
6. Pursuant to Iowa Code §§ 147.55 and 258A.10, Iowa Admin. Code 280.211, and the foregoing allegations, the Board has jurisdiction to determine if grounds exist for license discipline against the Respondent.

* * *

You are also hereby notified that the hearing will be presided over by the Board which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals.

Further, you are also hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all filings with the Board should also be served on

counsel at the following address: Lynette A. F. Donner, Assistant Attorney General, Hoover State Office Building, Des Moines, Iowa 50319. Ms. Donner's telephone number is: 515/281-8760.

Dated this 2nd day of April, 1991.


Judith K. Rinehart
Chairperson
Iowa Board of Social Work Examiners

CERTIFIED MAIL RETURN RECEIPT REQUESTED

Iowa Department of Inspections and Appeals
Division of Appeals and Fair Hearings
Lucas State Office Building
Des Moines, Iowa 50319

IOWA BOARD OF SOCIAL
WORK EXAMINERS,
Plaintiff

VS.

HARVEY DEAN VISSCHER,
Respondent

DIA DOCKET NO. 91DPH-5
COMPLAINT NO. 87-5

DISMISSAL OF
CONTESTED CASE HEARING

The above parties signed an informal settlement agreement on May 15, 1991 and submitted the agreement to the Iowa Board of Social Work Examiners for acceptance.

On June 11, 1991, the Board, through Chairperson Judith K. Rinehart, accepted the terms of the informal settlement.

Wherefore, the previously set contested case hearing before the Iowa Board of Social Work Examiners is hereby dismissed.

Dated this 26th day of June, 1991.

Samuel R. Render
Daniel R. Render
Administrative Law Judge
Iowa Department of Inspections and Appeals

 $\text{DRR}/\mu\text{m}$

cc: Harvey Dean Visscher
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Sioux City, IA 51104

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